(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from June 12, 1948, to July 1, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on July 2, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on October 1, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from September 11, 1948, to September 30, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on October 1, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Blackfoot, Idaho, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Blackfoot, Idaho.

The lands affected by this order are described as follows:

BOISE MERIDIAN

T. 2 S., R. 2 E.,
Secs. 1 and 12.
T. 2 S., R. 3 E.,
Secs. 6 and 7.

The areas described aggregate 2,276.98 acres.

The lands in this area vary from rolling to rough and broken, with considerable areas of lava outcropping.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

APRIL 30, 1948.

[F. R. Doc. 48-4269; Filed, May 12, 1948; 8:45 a. m.]

[Public Land Order 476]

ARIZONA

REVOKING PUBLIC LAND ORDER 39 OF SEPTEMBER 10, 1942, AS AMENDED, WITHDRAWING PUBLIC LAND FOR USE OF WAR DEPARTMENT AS PRACTICE BOMBING RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 39 of September 10, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing the public land in the hereinafter-described area for the use of the War Department as a practice bombing range, is hereby revoked.

The jurisdiction over and use of such land granted to the War Department by Public Land Order No. 39 shall cease upon the date of the signing of the order. Thereupon, the jurisdiction over and administration of such land shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on July 2, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from July 2, 1948, to September 30, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from June 12, 1948, to July 1, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on July 2, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on October 1, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from September 11, 1948, to September 30, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on October 1, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Phoenix, Arizona, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Acting Manager, District Land Office, Phoenix, Arizona.

The lands affected by this order are described as follows:

GILA AND SALT RIVER MERIDIAN

T. 8 S., R. 2 E., Sec. 33.

The area described contains 640 acres.

Available data indicate that this land is rough, rolling desert is character.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

APRIL 30, 1948.

[F. R. Doc. 48-4270; Filed, May 12, 1948; 8:46 a. m.]

[Public Land Order 477]

OREGON

REVOKING IN PART EXECUTIVE ORDER 9042 OF JANUARY 26, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT

By virtue of the authority contained in the act of July 9, 1918 (40 Stat. 845, 848; 10 U. S. C., sec. 1341) and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 9042 of January 26, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing public lands for the use of the War Department for aviation purposes, is hereby revoked so far as it affects the land hereinafter-described.

The jurisdiction over and use of such land granted to the War Department by Executive Order No. 9042 shall cease upon the date of the signing of this or-

der. Thereupon, the jurisdiction over and administration of such land shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on July 2, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from July 2, 1948, to September 30, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from June 12, 1948, to July 1, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on July 2, 1948, shall be treated as simultaneously filed.

(c) *Date of non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on October 1, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from September 11, 1948, to September 30, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on October 1, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, The Dalles, Oregon shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, The Dalles, Oregon.

The lands affected by this order are described as follows:

WILLAMETTE MERIDIAN

T. 4 N., R. 30 E.,
Sec. 6, E½.

The area described contains 310.36 acres.

The land is rolling, rough and rocky in character.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

APRIL 30, 1948.

[F. R. Doc. 48-4271; Filed, May 12, 1948; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 5—EXPERIMENTAL RADIO SERVICES

LIMITATIONS

At a session of the Federal Communications Commission, held at its offices in Washington, D. C. on the 5th day of May 1948;

The Commission having under consideration § 5.53 (c) (1) of Part 5, "Rules and Regulations Governing Experimental Radio Services," which requires the licensee of a Class 1 experimental radio station, prior to use of the station for making any field strength survey, to notify the Commission's Engineer in Charge of the district where the proposed survey is to be conducted and the Washington, D. C. office of the Commission at least ten days prior to commencement of such survey, and its proposal to amend this section to provide that such notification be submitted only to the Engineer in Charge of the district where the proposed survey is to be made and on two days' notice instead of ten days; and

It appearing, that the Commission also has under consideration § 5.53 (c) (2) of Part 5, "Rules and Regulations Governing Experimental Radio Services", which requires the licensee of a Class 1 experimental radio station to submit a complete and comprehensive report of all data obtained in field strength surveys to the Washington, D. C. office of the Commission within one month after completion of the survey, and its proposal to amend this section to provide that said report be submitted to the Engineer in Charge of the district where the said survey was made instead of to the Washington, D. C. office; and

It further appearing, that the proposed amendments are procedural and, therefore, the public notice and procedure set forth in section 4 of the Administrative Procedure Act are not required herein;

It is ordered, That effective immediately § 5.53 (c) is amended so that subparagraphs (1) and (2) shall read as follows:

§ 5.53 *Limitations.* * * *

(c) A Class 1 experimental station may be used for transmissions directly relating to field strength surveys, which may include test messages, essential to the installation, extension, or development of a radiocommunication facility only under the following conditions:

(1) That the licensee of the station submit to the Engineer in Charge of the district in which the survey is to be conducted, at least two days prior to each specific survey, complete and detailed information with respect to the following:

(i) Time, date and duration.

(ii) Location of transmitter and geographic area to be covered.

(iii) Purpose of the survey.

(iv) Method and equipment to be used.

(v) Names and addresses of the persons for whom the survey is conducted if other than the licensee of the experimental station.

(2) That the licensee of the station shall within one month after completion of the survey submit, to the Engineer in Charge of the district in which the survey was conducted, a comprehensive report of all data obtained.

Provided, however, That upon notice from the Commission the licensee shall suspend or cancel such operation or proposed operation, or conduct the same upon such conditions as the Commission may deem to be in the public interest.

(48 Stat. 1066, 1082; 47 U. S. C. 154 (i), 303 (a), (b), (c), (f))

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48-4306; Filed, May 12, 1948; 8:59 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 381, Amdt. 3]

PART 95—CAR SERVICE

TRAINLOADS OF BAUXITE ORE CONCENTRATES

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 6th day of May A. D. 1948.

Upon further consideration of Revised Service Order No. 381 (11 F. R. 13837), as amended (12 F. R. 2926, 7595), and good cause appearing therefor: It is ordered, that:

Section 95.381, *Trainloads of bauxite ore concentrates,* of Revised Service Order No. 381, be, and it is hereby, amended by substituting the following paragraph (g) for paragraph (g) thereof:

(g) *Expiration date.* This section shall expire at 11:59 p. m., November 10, 1948, unless otherwise modified, changed,